

Lisa, I am fine with your changes. The language that you highlighted in red should read "the Parties enter into a definitive agreement(s) for the compression services". Please make the change. Let me know if you need anything further.

-----Original Message-----

From: Druzvik, Lisa  
Sent: Wednesday, November 07, 2001 5:51 PM  
To: Nemec, Gerald  
Cc: Hilgert, Chris; Higgins, Ned; Freeman, Ben; Hinze, Ryan  
Subject: RE: NICOR LOI

Gerald -

Thanks. As discussed earlier, I accepted all of your changes except the item in Section 14.

In the meantime, we have reworked the language in Non-Binding Sections 12 & 13 to further clarify the power rates and terms. Please review.

<< File: Nicor LOI (Nov-7-01).doc >>

Also, the Term language (in red) in Binding Section 1 below seems to give NICOR an out and seems to contradict the exclusivity clause? Please explain.

Term. This Agreement shall remain in force and effect until the earliest to occur of the following events: (i) an entity or entities other than the Parties enter into a definitive agreement(s) for the compression services; or (ii) April 1, 2002 (the "Term"). The provisions of Section 3, Confidentiality, shall survive any termination of this Agreement, as necessary for them to expire according

Thanks, Lisa Druzvik  
3-9620

-----Original Message-----

From: Nemec, Gerald  
Sent: Wednesday, November 07, 2001 11:41 AM  
To: Druzvik, Lisa  
Cc: Hilgert, Chris  
Subject: NICOR LOI

Attached is the LOI with my comments redlined. Let me know if you have any questions.

<< File: Nicor LOI (Nov-7-01)(red).doc >>